

As part of the European project ARC II (Awareness Raising Campaign for SMEs), on Wednesday, July 5th, the Agency organized an online workshop aimed at entrepreneurs in the tourism sector titled "Protection of Personal Data and Compliance with GDPR in Tourism."

Participants in the workshop had the opportunity to learn about the ten key steps necessary to align their business with the General Data Protection Regulation. Concrete examples were presented on how to conduct an analysis of personal data processed by the data controller (e.g., hotel), how to properly write a privacy policy and obtain consent from guests, as well as how to conduct a proportionality test or demonstrate legitimate interest as an appropriate legal basis for processing personal data, specifically sending newsletters to the email addresses of respondents.

Examples of appropriate technical and organizational measures necessary for the protection of personal data were also presented. For instance, in practice, guests encounter landlords who ask them to send a copy of their credit card for reservation guarantee, which is not in compliance with the General Data Protection Regulation. The landlord can use credit card data for the purpose of guaranteeing a reservation by utilizing the services of reliable companies that provide online booking and payment services or pre-authorization of credit cards. Similarly, if the landlord has a website, they can perform pre-authorization and reservation through a web form on their own website. It is crucial that the website has an SSL certificate, is regularly updated, undergoes regular security scanning, and is protected from hacking attacks and viruses.

Additionally, it was an opportunity for participants to receive answers to all questions and thus resolve uncertainties regarding the processing of personal data of their employees and/or guests. Namely, landlords often misinterpret the obligation to register a guest in e-Visitor and believe that they must photograph or copy the guest's ID card as it is their legal obligation. However, copying or photographing an identity document is not a legal obligation for landlords; it is sufficient to request the guest's ID for inspection and to transcribe the personal data necessary for entry into e-Visitor.

The presentation used in the workshop can be found at the link, allowing you to learn how to comply with GDPR in tourism: <https://arc-rec-project.eu/wp-content/uploads/2023/07/turizam-5-7.pdf>